

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 5133 of 2015

Md. Alkas Sikder and another

.....Convict-appellants.

-Versus-

The State.

.....Respondent.

Mr. Indrojit Kumar Moulick, Advocate

.....For the appellants.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Heard on 22.01.2024 and Judgment on 24.01.2024

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Md. Alkas Sikder and another is directed against the judgment and order of conviction and sentence dated 24.06.2015 passed by the learned Judge, Special Tribunal No.3, Pirojpur in Special Tribunal Case No. 30 of 2012 arising out of G.R No. 20 of 2012 corresponding to Pirojpur Police Station Case No. 20 dated 25.01.2012 convicting the accused-appellants under section 25B(2) of the Special Powers Act, 1974 and sentencing them thereunder to suffer rigorous imprisonment for a period of 5(five) years and to pay a

fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for a period of 3 (three) months more and to confiscate the seized motorcycle in favour of the State.

The prosecution case, in brief, is that one, Mohd. Rezaul Hossain, D.A.D, Company No.1, RAB-8, Barishal as informant on 25.01.2012 at about 14:10 hours lodged an Ejahar with Pirojpur Sadar Police Station against the accused appellants stating, inter-alia, that on 24.01.2012 at about 23:55 hours he along with other RAB forces while were on special duty got a secret information that the 2 accused persons are doing phensidyl business in-front of the house of Ayub Ali at Thakurbari Road under Masimpur village, Pirojpur Sadar Police Station and then the informant party rushed there at about 00:15 hours and apprehended the accused persons with their motorcycle being Reg. No. Jashore Ha-12-3640, Chasis No. Md 625MF52 AIF 71310, Engine No. CF5FA1472866, which valued at Taka 85,000/-. Thereafter, on search the informant party recovered 10 bottles Indian phensidyl syrup from under the seat-cover of the motorcycle and thereafter, on interrogation accused, Md. Mahbub Sheikh @ Bhangari Mahbub handed over Taka 5009/- and accused Md. Alkas also handed over Taka 2210/- to the informant

party saying that they got the same by selling phensidyls. Thereafter, the informant party seized those goods including cash Taka by preparing seizure list in presence of the witnesses. In this backdrop, on interrogation the accused confessed that they kept some phensidyl in the house of accused Md. Mahbub Sheikh @ Bhangari Mahbub and accordingly the informant party went to the house of Md. Mahbub Sheikh @ Bhangari Mahbub and recovered total 88 bottles phensidyl and thereafter, the informant party seized those phensidyl syrups by preparing seizure list in presence of the witnesses.

Upon the aforesaid First Information Report, Pirojpur Police Station Case No. 20 dated 25.01.2012 under section 25B (2) of the Special Powers Act, 1974 was started.

During investigation, police visited the place of occurrence, prepared the sketch-map, examined the witnesses under section 161 of the Code of Criminal Procedure and after completion of usual investigation submitted charge sheet being charge sheet No. 65 dated 26.05.2012 under section 25-B(2)/25-D of the Special Powers Act, 1974 against the accused-appellants.

Thereafter, the case record was sent to the Court of learned Joint Sessions Judge, 1st Court and Special

Tribunal No.3,Pirojpur, wherein the case was registered as Special Tribunal Case No. 30 of 2012. Ultimately, the accused appellants were put on trial before Special Tribunal No.3, Pirojpur to answer a charge under section 25B (2)/25-D of the Special Powers Act, 1974 in which the accused-appellants pleaded not guilty and claimed to be tried stating that they have been falsely implicated in this case.

At the trial, the prosecution has examined in all 07(seven) witnesses to prove its case while the defence examined none.

On conclusion of trial the learned Judge, Special Tribunal No.3, Pirojpur by the impugned judgment and order dated 24.06.2015 found the accused appellants guilty under section 25B (2) of the Special Powers Act, 1974 and sentenced them thereunder to suffer rigorous imprisonment for a period of 5(five) years and to pay a fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for a period of 3 (three) months more each and to confiscate the seized motorcycle in favour of the State.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence the accused-appellants preferred this criminal appeal.

Mr. Indrojit Kumar Moulick, the learned Advocate appearing for the convict-appellants at the very outset referring a death certificate of accused Mahabub Sheikh submits that during pendency of this appeal accused-appellant No.2, Md. Mahabub Sheikh died on 10.11.2020. Next, the learned Advocate in the course of argument takes me through the F.I.R, deposition of witnesses, charge sheet and other materials on record including the impugned judgment and then submits, there is nothing on record to suggest that the so-called phensidyl syrups were recovered from the direct possession and control of the accused-appellant No.1 Md. Alkas Sikder. He further submits that in this case admittedly witnesses categorically disclosed that as per statement of the accused-appellant No.2, Md. Mahbub Sheikh alia Bhangari Mahbub, police went his house and recovered 88 bottles of phensidyl syrup and therefore, as per evidence on record 88 bottles of phensidyl syrup allegedly recovered from the house of accused-appellant No.2, Md. Mahbub Sheikh alia Bhangari Mahbub. Finally, the learned Advocate submits that in this case investigating officer (PW-6) admitted in his cross-examination that during investigation he did not obtain any chemical examination report and therefore, it is difficult to believe that the alleged seized goods were

actually contraband in nature and as such, the impugned judgment and order of conviction under section 25B (2) of the Special Powers Act, 1974 cannot be sustained in law.

Ms. Kohenoor Akter, the learned Assistant Attorney-General, on the other hand, supports the impugned judgment and order of conviction and sentence, which was according to her just, correct and proper. Referring to FIR, charge sheet, deposition of witnesses and the impugned judgment the learned Assistant Attorney-General submits that in this case the prosecution has been proved that the contraband Indian phensidyl syrups were recovered from the direct possession and control of the accused appellants beyond reasonable doubts. She further submits that all the police witnesses in their respective deposition stated in one voice that the convict-appellants were apprehended along with phensidyl syrups and thereby, the learned Judge, Special Tribunal No. 3, Pirojpur justly held that the accused-appellants are guilty under section 25B(2) of the Special Powers Act, 1974.

Having heard the learned counsel for the parties and having gone through the materials on record, the only question that calls for our consideration in this appeal is whether the trial Court committed any error in

finding the accused-appellants guilty of the offence under section 25B(2) of the Special Powers Act, 1974.

On scrutiny of the record, it appears that one, Mohd. Rezaul Hossain, D.A.D, Company No.1, RAB-8, Barishal as informant on 25.01.2012 lodged an Ejahar with Pirojpur Sadar Station against the accused appellants on the allegation that on the basis of a secret information the informant party apprehended the accused appellants with $(10+88)=98$ bottles of Indian phensidyl syrup along with a motorcycle and cash Taka and the informant party seized those goods including cash Taka by preparing seizure list in presence of the witnesses. Police after completion of investigation submitted charge sheet against the accused-appellants being charge sheet No. 65 dated 26.05.2012 under section 25-B(2)/25-D of the Special Powers Act, 1974. It further appears that in this case the prosecution to prove its case examined in all 7 witnesses out of which PW-1, PW-2, PW-3, PW-4 and PW-6 are members of the law and enforcing agencies and rest witnesses namely, PW-5 and PW-7 were declared hostile by the prosecution. It further appears that PW-1 in his evidence categorically stated that the accused appellants were apprehended with $(10+88)=98$ bottles of Indian phensidyl syrup along with a motorcycle and cash Taka and witnesses namely, PW-2,

PW-3, PW-4 and PW-6 in their respective evidence corroborated the evidence of PW-1 in respect of all material particulars. It further appears that PW-6, S.I, Md. Sultan Ahmmad investigated the case and submitted charge sheet. This witness in his cross-examination stated- “আমি আসামীদের প্যান্ট জব্দ করিনি। তার টাকা পেয়েছি। ফেনসিডিলের বোতলের ভিতরে কি জাতীয় পদার্থ আছে তা আমি পরীক্ষা করিনি। ক্রেচ ম্যাপ উল্লেখ- খিত কোন জনসাধারণকে আমি সাক্ষী শ্রেণীভুক্ত করিনি। আমি এজাহারে উল্লেখ- খিত ব্যক্তিদের ব্যতীত অন্য কাউকে আমি পরীক্ষা করিনি।”

It is thus difficult to believe that the alleged seized goods were actually contraband in nature. In the case of Md. Mokhlesur Rahman and another Vs. The State reported in 14 BLD 126, it has been held that to sustain a conviction under section 25B of the Special Powers Act, it has to be fully established that seized goods are contraband goods and illegally brought into Bangladesh without payment of customs duties and other taxes.

In view of the attending facts and circumstances of the case and the evidence on record, I am constrained to hold that the prosecution has failed to prove the charge against accused appellants beyond any reasonable doubts.

The learned Trial Judge failed to consider evidence on record from a correct angle thereby reaching a wrong decision that the accused appellants are guilty for the offence under section 25 B(2) of the Special Powers Act which occasioned a failure of justice. In the facts and circumstances of the case and the evidence on record, it must be held that the prosecution failed to prove the charge of smuggling against accused appellants beyond reasonable doubts. Consequently the appeal succeeds.

The appeal is, accordingly, allowed. The impugned judgment and order of conviction and sentence dated 24.06.2015 passed by the learned Judge, Special Tribunal No.3, Pirojpur in Special Tribunal Case No. 30 of 2012 arising out of G.R No. 20 of 2012 corresponding to Pirojpur Police Station Case No. 20 dated 25.01.2012 convicting the accused-appellants under section 25B(2) of the Special Powers Act, 1974 and sentencing them thereunder to suffer rigorous imprisonment for a period of 5(five) years and to pay a fine of Taka 5,000/- (five thousand) in default to suffer simple imprisonment for a period of 3 (three) months more is set-aside and the appellant No.1 Md. Alkas Sikder is acquitted of the charge levelled against him. Since, accused-appellant No.2, Md. Mahabub Sheikh alias Bhangari Mahbub died on 10.11.2020 as per his death certificate, it is needless

to pass any order as to accused-appellant No.2, Md. Mahabub Sheikh alias Bhangari Mahbub.

Convict appellant No.1, Md. Alkas Sikder is discharged from her bail bond.

Send down the lower Court records at once.